

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MICHAEL BLAKE,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JIMMY
PEREZ, SHIELD #8269, NEIGHBORHOOD
COORDINATOR FROM PSA 7, POLICE OFFICER
MANUEL REYES, TAX ID 939749 AND JOHN DOE
ALL SUED IN THEIR CAPACITY AS POLICE OFFICERS
AND INDIVIDUALLY,

Defendants.
-----X

**SUMMONS WITH
VERIFIED COMPLAINT**

Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.
The basis of the venue is
place where the cause of
action arose.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York

This 24th day of July, 2017

EMDIN & RUSSELL, LLP.
Royce Russell, Esq., as Counsel
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
Tel: (212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer Jimmy Perez
Shield #8269
c/o PSA 7 Housing Dept.
737 Melrose Avenue,
Bronx, NY 10455

Police Officer Reyes
Tax ID No. 939749
New York City Police Dept.
c/o 7th Precinct
19 1/2 Pitt Street,
New York, NY 10002

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
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VERIFIED COMPLAINT

Index No.

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AND INDIVIDUALLY,Defendants.
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The plaintiff, Michael Blake, and by his attorneys, Emdin & Russell, LLP., complaining of the defendants respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. Upon information and belief that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.

3. That at all times hereinafter mentioned, specifically on the 30th day of July 2016, at approximately 3:37 p.m., at the location of 1285 Washington Avenue and 1260 Webster Avenue in the County of Bronx within the State of New York hereafter referenced to as the "location" the plaintiff was lawfully present and had not committed a crime.

4. Upon information and belief, that at all times hereinafter mentioned, specifically on the 30th day of July 2016 at approximately 3:37 p.m., Police Officer Jimmy Perez, Shield No. 8269,

Police Officer Reyes, Tax ID # 939749, Police Officer John Doe hereinafter collectively referred to as “the officers” were screened, interviewed, hired by the “City”, trained by the “City”, were retained by the “City”, and were investigated, monitored, supervised and/or disciplined by the “City”.

5. That the plaintiff filed and served a notice of claim on or about September 30, 2016.

6. The City acknowledged receipt of the notice of claim and held a 50(h) hearing of

7. Michael Blake on October 11, 2016. The 50(h) hearing was conducted on or about December 27, 2016.

8. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.

9. That this action is commenced within one year and 90 days after the cause of action arose.

10. Michael Blake is a United States Citizen and is referred hereinafter as Blake.

11. Michael Blake, an at all relevant time hereunder, reside in the County of Bronx, and at the time of the incident was serving as Bronx Assemblyman at 780 Concourse Village West, Ground Floor, Bronx, New York.

12. Upon information and belief at all times hereinafter mentioned, and specifically on the 30th day of July, 2016, “Perez”, “Reyes” and “Doe”, at approximately 3:37 p.m., were present at or near the vicinity of 1285 Washington Avenue and 1260 Webster Avenue in Bronx County, New York, and were acting within the scope of their employment and under the direction of the “City”, and “NYPD” as their agents, servants and/or employee(s).

13. That “the officers”, individually and collectively, at all relevant times hereunder, acted as a police officer, and was required to follow the rules and regulations as contained in the New York

City Patrol Guidelines.

14. That on July 30, 2016, the plaintiff was lawfully at the abovementioned location in that he was working as an Assemblyman in the Bronx with all aspects of Government, and was lawfully at the location attending the Morris Avenue family day. Blake was fulfilling his duties as an Assemblyman for the 79th District.

15. While attending the Morris Avenue family day event, Blake was speaking with members of the Police Department PSA 7. Blake observed the officers crowding around a group of his “constituents,” one male and one female engage in a conversation.

16. Blake started to walk in the direction of said constituents when he was forcibly grabbed, bear hugged and thrown into a gate by “Perez,” and then surrounded by “Reyes” and “Doe,” preventing/restricting his movements.

17. Blake was thrown into and/or up onto a metal gate.

18. Police Officer Angel Irizarry, Shield No. 5466, reached over and ordered defendant “Perez” to release the then Assemblyman Blake .

19. Blake, upon gathering himself, emotionally requested Defendant’s shield numbers for which neither Defendant “Perez” and/or “Reyes” responded.

20. Police Officer Irizarry asked Blake to walk with him, at which time, approximately 30 other unknown officers appeared at the location exactly where Blake was being unlawfully, forcefully and unconstitutionally detained.

21. Blake inquired as to what the training is on the use of force, for which Police Officer Irizarry did not respond.

22. Blake, physically and emotionally shaken, did not commit any crime, and was not engaged in any criminal conduct, and as oppose to receiving an apology, was told by “Perez” and “Reyes”

that if they had the opportunity to conduct themselves differently they would have conducted themselves no differently.

23. The Defendant Officers' conduct was excessive, unnecessary and violated police guidelines.

24. The Defendant Officers' false detention of Blake was willful, as well as the force used.

25. The acts of the Defendant constituted excessive force, battery and assault of Blake's person.

26. At no time did any named, known or unknown officers intervened in the illegal detention, search, seizure, false arrest, false imprisonment, battery, assault, abuse of power/authority and excessive force on behalf of Blake, until after the Defendant Officers realized his professional Governmental position as Assemblyman for the County of Bronx, 79th District.

27. Blake sustained physical and emotional injury as a result of the defendants conduct.

28. That this action falls within one of the exceptions of CPLR 1601.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE DETENTION/IMPRISONMENT

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "28" with the same force and effect as if more fully and at length set forth herein.

30. That beginning on or about the 30th day of July, 2016, at the approximate hours of 3:37 p.m. at or near the vicinity of 1285 Washington Avenue and 1260 Webster Avenue in the County of Bronx, New York, the defendants, and their agents, servants and/or employees intentionally detained and use excessive force, without any just cause or grounds against Blake, therefore and held him against his will under full force of arms.

31. That said detention was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds or any cause to believe that the plaintiff was guilty of any crimes, or that the defendants had just cause to imprison the plaintiff.

32. The plaintiff was wholly innocent of any crime, and did not contribute in any way or manner to his detention or imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid detention and imprisonment entirely against his will.

33. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; in that the plaintiff was conscious of his confinement; the plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

34. That by reason of the aforesaid false detention and imprisonment of the plaintiff, he was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.

35. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF AGAINST ALL NAMED DEFENDANTS
FOR BATTERY AND ASSAULT:

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "35" with the same force and effect as if fully set forth herein.

37. Upon information and belief, on or about the 30th day of July, 2016, commencing at the approximate hour of 3:37 p.m. at or near the vicinity of 1285 Washington Avenue and 1260 Webster Avenue in the County of Bronx, New York, defendants "officers", while acting in the

scope of their employment as police officers and as agents for the defendant the "City", without just cause or provocation and with great force and violence, grabbed, slammed, bear hugged and threw Blake against and/or up onto a metal gate while forcibly preventing his movements.

38. Blake was held until the Defendants were informed of his professional capacity.

39. That the defendants, their agents, servants and/or employees, including but not limited to "officers" were acting as an agent on behalf of the defendant "City", within the scope of their employment, intentionally, willfully, and maliciously battered and assaulted the plaintiff, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact with the plaintiff and intentionally did an act which threatened to and did cause such contact to the plaintiff. That said acts caused apprehension of such offensive contact to the plaintiff, and "officers" in a hostile and/ or offensive manner touched and battered the plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such batter in and about his body and limbs.

40. That "officers" used excessive and/or unreasonable force to effectuate the plaintiff's detention and imprisonment.

41. That said acts occurred within the scope of the police officers employment with the "City."

42. That by reason of the aforesaid intentional battery and assault, the plaintiff suffered and still continues to suffer from physical and psychological injuries and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that he was otherwise damaged.

43. That by reason of the aforesaid battery and assault, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR VIOLATION OF PERSONAL
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. 1983 AGAINST
THE CITY OF NEW YORK**

44. That plaintiff repeats, reiterates and realleges each and every allegation Contained in paragraphs marked "1" through "43" with the same force and effect as if more fully and at length set forth herein.

45. That upon information and belief, on or about the 30th day of July, 2016, at or about approximately 3:37 p.m. at or near the vicinity of 1285 Washington Avenue and 1260 Webster Avenue in the County of Bronx, New York, defendant, "officers" were present as part of their regular course of business with the City of New York.

46. That plaintiff was lawfully present at the vicinity of 1285 Washington Avenue and 1260 Webster Avenue in the County of Bronx, New York.

47. That the "officers" without probable cause or reasonable suspicion to detain and imprison, batter and/or assault the plaintiff.

48. That the plaintiff was forcibly grabbed, bear hugged and thrown against and/or up onto a metal gate, detained and seized by the "officers", acting as an agent, servant and/or employee for defendant, City, without provocation, to detain, seize, batter and assault the plaintiff.

49. That all acts committed by "the officers" and other agents, servants, and/or employees and/or agents of the defendant "City", were committed within the scope of their employment and under color of law, and while said officer was acting under the custom, policy, rules and/or regulations of the City.

50. That said acts constituted an illegal seizure of the plaintiff and deprived the plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New

York and under 42 U.S.C. Section 1983 and/or 1986.

51. That said acts constituted cruel, unusual punishment and excess in force.

52. That said acts violated the plaintiff's rights to due process of law.

53. That the defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and /or police practices which included illegal seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in police cover-up, any and for all of the above contributing to plaintiff's false detention, imprisonment and injuries.

54. The City negligently trained, retained, supervised, disciplined, monitored and/or investigated the defendant officers, when, upon information and belief they had knowledge of their violent propensities and prior bad acts.

55. The Defendants' actions on July 30, 2016 were performed under the color of the policies, statute, ordinances, rules and regulations of the City of New York.

56. That the plaintiff did not commit any illegal act, either before or at the time he was falsely detained and imprisoned, battered, assaulted, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

57. That by reason of the aforesaid, the plaintiff was injured in mind and body, and he was damaged.

58. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR MALICIOUS ABUSE OF
AUTHORITY UNDER 42 U.S.C. § 1983, BY “PEREZ, REYES AND JOHN DOE”
EACH IN HIS INDIVIDUAL CAPACITY AND AS AN AGENT OF THE CITY OF
NEW YORK**

59. Plaintiffs repeat, reinstates, and realleges each and every allegation contained in paragraphs “1” through “58” with the same force and effect as if fully set forth herein.

60. Defendant “officers” abused their authority by intentionally battering, assaulting, and falsely detaining and imprisoning the Plaintiff without probable cause, thereby violating Plaintiff’s rights.

61. The Defendant “officers” caused Plaintiff to be subjected to great indignity, humility, pain and distress of mind and body when they detained him without any reasonable grounds, or any cause to believe that he was guilty of any crimes.

62. Defendants further abused their authority and power by using excessive and unreasonable force to effectuate the plaintiff’s detention and imprisonment.

63. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

**AS AND FOR A FIFTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983, BY "PEREZ, REYES
AND JOHN DOE" EACH IN HIS INDIVIDUAL CAPACITY AND AS AN AGENT OF
THE CITY OF NEW YORK**

64. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "63" with the same force and effect as if more fully and at length set forth herein.

65. That at all times hereinafter mentioned, "officers" were employed by the Defendant, The City of New York and/or The New York City Police Department, and each was acting under the color of his official capacity, and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

66. That at all times hereinafter mentioned, the "officers" acted pursuant to orders and directives from Defendant, The City of New York.

67. That during all times hereinafter mentioned, "officers" acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth in this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and the State of New York and U.S.C. Section 1983 and/or Section 1986.

68. That the unlawful and illegal conduct of the defendant officers deprived the plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable seizure

and the right not to be subjected to excessive force, under the Fourth and Fourteenth

Amendments to the Constitution of the United States; and,

b) The right of plaintiff to have the equal protection of the laws secured by the Fourteenth

Amendment to the Constitution of the United States.

c) The right to be free of cruel and unusual punishment.

d) The right not to be discriminated against based on race, age or creed.

e) The right to prompt and necessary medical attention.

f) The right to due process of law.

69. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff's person, his false detention and false imprisonment, battery and assault, the officers conspiracy to violate the plaintiff's due process of law and the malicious prosecution of the plaintiff, defendant "officers", violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendant officers violated 42 U.S.C. §1983.

70. That as a direct proximate result of the defendants actions, the plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

71. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries, to extricate himself from the indignities and humiliation fostered upon him by the actions of the

“officers”, individually and collectively.

72. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts, and seek compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiff demands judgment against the defendants on the First through Fifth causes of action in a sum to be determined by the trier of fact, plus costs, attorney’s fees, punitive damages and such other relief as to the court seems just and proper on the first through fifth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York
July , 2017

Emdin & Russell, LLP.
Attorneys for Plaintiff
499 Seventh Avenue, 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

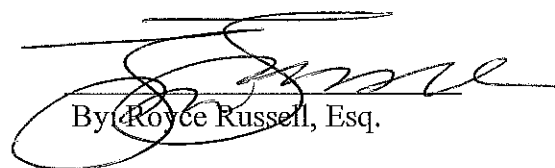
That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
July 27, 2017



By: Royce Russell, Esq.

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

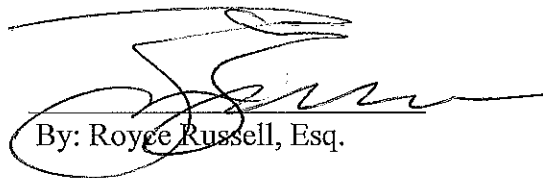
That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

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The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

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Dated: New York, New York
July 24, 2017



By: Royce Russell, Esq.

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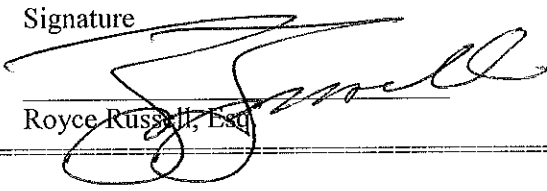
SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Plaintiffs
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995To: Corporation Counsel
c/o City of New York,
100 Church Street
New York, New York 10007Police Officer Manuel Reyes
Tax ID #939749
New York City Police Dept.
c/o 7th Precinct
19 1/2 Pitt Street,
New York, NY 10039Police Officer Jimmy Perez
Shield No. #8269
c/o PSA 7 Housing Dept.
737 Melrose Avenue
Bronx, N.Y. 10455

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State,
certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed
document are not frivolous.

Dated: July 24, 2017

Signature


Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on